FUNDAMENTAL RIGHTS

PART III AS AN → ARTICLE 12 AND 13 → EQUALITY CODE AND RESERVATION → ARTICLE 19: SIX FREEDOMS → ARTICLES 20-22: CRIMINAL PROCESS → EXPLOITATION, RELIGION AND MINORITY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

◆ PRIMARY CORE FLOW ◆ SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g15 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

00

STAGE 00 — PART III AS AN OPERATING ARCHITECTURE, NOT A LIST

PART III AS AN OPERATING ARCHITECTURE, NOT A LIST · PART III · ARTICLE 12 DEFINES STATE; ARTICLE 13 CONTROLS LAW · ARTICLES 14-18 · ARTICLES 19-22 · ARTICLES 23-24 · ARTICLES 25-28 · ARTICLES 29-30

PART III

GATEKEEPERS: Article 12 defines State; Article 13 controls law → EQUALITY: Articles 14-18 → FREEDOMS: Articles 19-22

CONSTITUTIONAL BASIS / ARTICLE

- PART III
- GATEKEEPERS: Article 12 defines State; Article 13 controls law
- EQUALITY: Articles 14-18

POWER / PROCEDURE

- FREEDOMS: Articles 19-22
- EXPLOITATION: Articles 23-24
- RELIGION: Articles 25-28

CHECK / LIMIT

- CULTURE / EDUCATION: Articles 29-30
- REMEDY: Article 32
- SAVINGS / SPECIAL CONTROL: Articles 31A-31C and 33-35

FEDERAL / RIGHTS IMPACT

- REACH vertical: person versus State horizontal: express private reach in Articles 15(2), 17, 23 and 24 positive duty
- State may need to protect rights against private domination
- RIGHT = protected claim + justified limit + effective remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Part III combines rights, limits and remedies: Articles 12 and 13 control State action and law, while Article 32 converts protected freedoms into enforceable claims.

01

STAGE 01 — ARTICLE 12 AND 13: WHO IS BOUND AND WHAT BECOMES VOID

ARTICLE 12 AND 13 · WHO IS BOUND AND WHAT BECOMES VOID · ARTICLE 12 INQUIRY · UNION/STATE ORGANS + LOCAL AUTHORITIES + OTHER AUTHORITIES · DEEP AND PERVASIVE CONTROL? · FINANCIAL, FUNCTIONAL AND ADMINISTRATIVE DOMINATION? · PUBLIC IMPORTANCE TIED TO GOVERNMENT? · PRADEEP KUMAR BISWAS (2002)

ARTICLE 12 INQUIRY → Union/State organs + local authorities + other authorities → deep and pervasive control? → financial, functional and administrative domination? → public importance tied to government?

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 12 INQUIRY
- Union/State organs + local authorities + other authorities
- deep and pervasive control?
- financial, functional and administrative domination?

POWER / PROCEDURE

- public importance tied to government?
- Pradeep Kumar Biswas (2002): cumulative instrumentality inquiry
- ARTICLE 13 INQUIRY pre-Constitution inconsistent law → void to extent of inconsistency post-Constitution abridging law → prohibited and
- void to that extent

CHECK / LIMIT

- "law" includes ordinance, rule, regulation, notification, custom and usage
- DOCTRINES severability
- waiver generally unavailable
- prospective overruling

FEDERAL / RIGHTS IMPACT

- AMENDMENTS: Article 13(4) + Article 368 → Kesavananda Bharati (1973) basic-structure review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

02

STAGE 02 — EQUALITY CODE AND RESERVATION DOCTRINE

EQUALITY CODE AND RESERVATION DOCTRINE · ARTICLE 14 EQUALITY BEFORE LAW + EQUAL PROTECTION CLASSSIFICATION · INTELLIGIBLE DIFFERENTIA + RATIONAL NEXUS · ARBITRARINESS IS ANTITHETICAL TO EQUALITY · ARTICLES 15-16 NON-DISCRIMINATION + ENABLING SUBSTANTIVE-EQUALITY CLAUSES · FIRST AMENDMENT · ARTICLE 15(4) · INDRA SAWHNEY (1992)

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 14 equality before law + equal protection classification = intelligible differentia + rational nexus	Champakam Dorairajan (1951) → First Amendment → Article 15(4)	M. Nagaraj (2006)/Jarnail Singh (2018) → inadequacy data and Article 335 efficiency controls	ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.
E.P. Royappa (1973)/Maneka Gandhi (1978) = arbitrariness is antithetical to equality	Indra Sawhney (1992) → creamy layer, ordinary 50% ceiling, no 16(4) promotion	103rd + Janhit Abhiyan (2022) → EWS upheld by majority	
ARTICLES 15-16 non-discrimination + enabling substantive-equality clauses	77th/81st/82nd/85th → promotion, backlog, qualification and seniority tools	Davinder Singh (2024) → evidence-based SC sub-classification allowed, not mandated	

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 14 equality before law + equal protection classification = intelligible differentia + rational nexus
- E.P. Royappa (1973)/Maneka Gandhi (1978) = arbitrariness is antithetical to equality
- ARTICLES 15-16 non-discrimination + enabling substantive-equality clauses

POWER / PROCEDURE

- Champakam Dorairajan (1951) → First Amendment → Article 15(4)
- Indra Sawhney (1992) → creamy layer, ordinary 50% ceiling, no 16(4) promotion
- 77th/81st/82nd/85th → promotion, backlog, qualification and seniority tools

CHECK / LIMIT

- M. Nagaraj (2006)/Jarnail Singh (2018) → inadequacy data and Article 335 efficiency controls
- 103rd + Janhit Abhiyan (2022) → EWS upheld by majority
- Davinder Singh (2024) → evidence-based SC sub-classification allowed, not mandated

FEDERAL / RIGHTS IMPACT

- ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 14 combines reasonable-classification review with anti-arbitrariness, so formal differentiation cannot shield irrational, capricious or disproportionate State action.

03

STAGE 03 — ARTICLE 19: SIX FREEDOMS AND RESTRICTION-GROUND DISCIPLINE

ARTICLE 19 · SIX FREEDOMS AND RESTRICTION-GROUND DISCIPLINE · ARTICLE 19(1), CITIZENS ONLY SPEECH · PROFESSION VALID LAW + LISTED GROUND + REASONABLENESS + · SPEECH GROUNDS UNDER 19(2) SOVEREIGNTY/INTEGRITY · STATE SECURITY · FRIENDLY RELATIONS · PUBLIC ORDER DECENCY/MORALITY

ARTICLE 19(1), CITIZENS ONLY speech

profession valid law + listed ground + reasonableness + proportionality → SPEECH GROUNDS UNDER 19(2) sovereignty/integrity → State security

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 19(1), CITIZENS ONLY speech
- profession valid law + listed ground + reasonableness + proportionality
- SPEECH GROUNDS UNDER 19(2) sovereignty/integrity

POWER / PROCEDURE

- State security
- friendly relations
- public order decency/morality

CHECK / LIMIT

- ANCHORS press and right to know derive from 19(1)(a)
- Shreya Singhal (2015): 66A void; advocacy differs from incitement
- Anuradha Bhasin (2020): shutdown orders require publication and proportionality

FEDERAL / RIGHTS IMPACT

- Kedar Nath Singh (1962): sedition read toward incitement
- BNS section 152 requires exact analysis, not a claim that sedition was merely renamed.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

04

STAGE 04 — ARTICLES 20-22: CRIMINAL PROCESS, DIGNITY AND DETENTION

ARTICLES 20-22 · CRIMINAL PROCESS, DIGNITY AND DETENTION · ARTICLE 20 · ALL PERSONS NO RETROSPECTIVE CRIMINAL OFFENCE OR ENHANCED PENALTY · ARTICLE 21 · A.K. GOPALAN (1950) COMPARTMENTALISATION · R.C. COOPER (1970) LINKAGE · JUST, FAIR AND REASONABLE PROCEDURE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 20: ALL PERSONS no retrospective criminal offence or enhanced penalty no prosecution and punishment twice for same	A.K. Gopalan (1950) compartmentalisation → R.C. Cooper (1970) linkage	K.S. Puttaswamy (2017) test: legality + legitimate aim + proportionality + safeguards	44th Amendment's proposed two-month substitution has not commenced.
offence no compelled testimonial self-incrimination by an accused	Maneka Gandhi (1978): just, fair and reasonable procedure	ARTICLE 22 ordinary arrest: grounds + lawyer + magistrate within 24 hours preventive detention: distinct safeguards	
ARTICLE 21	dignity family; privacy, livelihood, legal aid and speedy trial	no-board period remains three months	

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 20: ALL PERSONS no retrospective criminal offence or enhanced penalty no prosecution and punishment twice for same
- offence no compelled testimonial self-incrimination by an accused
- ARTICLE 21

POWER / PROCEDURE

- A.K. Gopalan (1950) compartmentalisation → R.C. Cooper (1970) linkage
- Maneka Gandhi (1978): just, fair and reasonable procedure
- dignity family; privacy, livelihood, legal aid and speedy trial

CHECK / LIMIT

- K.S. Puttaswamy (2017) test: legality + legitimate aim + proportionality + safeguards
- ARTICLE 22 ordinary arrest: grounds + lawyer + magistrate within 24 hours preventive detention: distinct safeguards
- no-board period remains three months

FEDERAL / RIGHTS IMPACT

- 44th Amendment's proposed two-month substitution has not commenced.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 20 restrains criminal power through protections against retrospective penal liability, double jeopardy and compelled testimonial self-incrimination, each operating within its defined scope.

05

STAGE 05 — EXPLOITATION, RELIGION AND MINORITY AUTONOMY

EXPLOITATION, RELIGION AND MINORITY AUTONOMY · ARTICLES 23-24 TRAFFICKING AND FORCED LABOUR PROHIBITED; MINIMUM-WAGE COERCION · ARTICLES 25-28 INDIVIDUAL CONSCIENCE AND PROFESSION, PRACTICE AND PROPAGATION · ARTICLE 26 DENOMINATION MANAGEMENT LIMITS · PUBLIC ORDER, MORALITY, HEALTH AND OTHER FRS · STATE MAY REGULATE SECULAR ACTIVITY AND ENACT SOCIAL REFORM · ARTICLES 29-30 · ANY SECTION OF CITIZENS WITH DISTINCT LANGUAGE, SCRIPT OR

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLES 23-24 trafficking and forced labour prohibited	Article 26 denomination management limits: public order, morality, health and other FRs	29(1): any section of citizens with distinct language, script or culture	Autonomy survives regulation; regulation cannot erase institutional identity.
minimum-wage coercion can implicate 23 children below 14 barred from factories, mines and hazardous employment under 24	State may regulate secular activity and enact social reform	29(2): admission non-discrimination in covered institutions	
ARTICLES 25-28 individual conscience and profession, practice and propagation	ARTICLES 29-30	30: religious and linguistic minorities may establish and administer institutions	

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLES 23-24 trafficking and forced labour prohibited
- minimum-wage coercion can implicate 23 children below 14 barred from factories, mines and hazardous employment under 24
- ARTICLES 25-28 individual conscience and profession, practice and propagation

POWER / PROCEDURE

- Article 26 denomination management limits: public order, morality, health and other FRs
- State may regulate secular activity and enact social reform
- ARTICLES 29-30

CHECK / LIMIT

- 29(1): any section of citizens with distinct language, script or culture
- 29(2): admission non-discrimination in covered institutions
- 30: religious and linguistic minorities may establish and administer institutions

FEDERAL / RIGHTS IMPACT

- Autonomy survives regulation; regulation cannot erase institutional identity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

06

STAGE 06 — ARTICLE 32: WRIT REMEDIES AND THE ENFORCEMENT LADDER

ARTICLE 32 · WRIT REMEDIES AND THE ENFORCEMENT LADDER · RIGHT VIOLATED · SUPREME COURT FOR FUNDAMENTAL RIGHTS · ARTICLE 226 · HIGH COURT FOR FRS AND OTHER LEGAL RIGHTS · WRIT CHOICE · HABEAS CORPUS PRODUCE DETAINED PERSON; TEST DETENTION

RIGHT VIOLATED

ARTICLE 32 → SUPREME COURT for Fundamental Rights → ARTICLE 226 → HIGH COURT for FRs and other legal rights → WRIT CHOICE

CONSTITUTIONAL BASIS / ARTICLE

- RIGHT VIOLATED
- ARTICLE 32 → SUPREME COURT for Fundamental Rights
- ARTICLE 226 → HIGH COURT for FRs and other legal rights

POWER / PROCEDURE

- WRIT CHOICE
- HABEAS CORPUS produce detained person; test detention
- MANDAMUS compel public duty

CHECK / LIMIT

- PROHIBITION stop jurisdictional excess before completion
- CERTIORARI quash completed order for jurisdictional or legal error
- QUO WARRANTO test authority to hold public office

FEDERAL / RIGHTS IMPACT

- Article 32 is itself a Fundamental Right: legal fit still matters.
- Article 226 is territorially and remedially wider, not constitutionally inferior.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect—detention, unperformed duty, threatened excess, defective order or unlawful public office.

07

STAGE 07 — SAVING CLAUSES, PROPERTY AND AMENDMENT DOCTRINE

SAVING CLAUSES, PROPERTY AND AMENDMENT DOCTRINE · ARTICLE 31A SPECIFIED REFORM CATEGORIES PROTECTED FROM ARTICLE 14/19 · ARTICLE 31B + NINTH SCHEDULE LISTED-LAW PROTECTION · I.R. COELHO (2007) · POST-24 APR 1973 INSERTIONS FACE BASIC-STRUCTURE REVIEW · ARTICLE 31C ORIGINAL PROTECTION FOR GENUINE ARTICLE 39(B)/(C) LAWS · KESAVANANDA BHARATI (1973) LIMITS IMMUNITY · MINERVA MILLS (1980) DEFEATS EXTENSION TO ALL DPSPS

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 31A specified reform categories protected from Article 14/19 attack
- ARTICLE 31B + NINTH SCHEDULE listed-law protection
- I.R. Coelho (2007): post-24 Apr 1973 insertions face basic-structure review

POWER / PROCEDURE

- ARTICLE 31C original protection for genuine Article 39(b)/(c) laws against 14 and 19
- Kesavananda Bharati (1973) limits immunity
- Minerva Mills (1980) defeats extension to all DPSPs

CHECK / LIMIT

- Property Owners Association (2024) preserves original 31C
- not every private asset is automatically a community resource
- 44th Amendment: Article 31 leaves Part III

FEDERAL / RIGHTS IMPACT

- Article 300A: every person; deprivation only by authority of law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

08

STAGE 08 — ARTICLE 358 AND 359: EMERGENCY EFFECTS ARE NOT THE SAME

ARTICLE 358 AND 359 · EMERGENCY EFFECTS ARE NOT THE SAME · ARTICLE 358 ARTICLE 359 AUTOMATIC OPERATION PRESIDENTIAL ORDER REQUIRED · ARTICLE 19 ONLY SPECIFIED RIGHTS NAMED IN ORDER WAR/EXTERNAL-AGGRESSION · ARTICLES 33-35 · PARLIAMENT MAY TAILOR FRS FOR FORCES AND SPECIFIED SERVICES · MAY INDEMNIFY MARTIAL-LAW ACTS AND HAS EXCLUSIVE COMPETENCE OVER · MARTIAL LAW

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 358 ARTICLE 359 automatic operation Presidential order required	limit suspends enforcement, not text post-44th nexus conditions apply Articles 20 and 21 cannot be included	Parliament may tailor FRs for forces and specified services	MARTIAL LAW != NATIONAL EMERGENCY local exceptional coercive control differs from constitutional proclamation.
Article 19 only specified rights named in order war/external-aggression Emergency Emergency while order operates changes State's Article 19	ARTICLES 33-35	may indemnify martial-law acts and has exclusive competence over listed matters.	No rule says all Fundamental Rights automatically disappear in Emergency.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 358 ARTICLE 359 automatic operation Presidential order required
- Article 19 only specified rights named in order war/external-aggression Emergency Emergency while order operates changes State's Article 19

POWER / PROCEDURE

- limit suspends enforcement, not text post-44th nexus conditions apply Articles 20 and 21 cannot be included
- ARTICLES 33-35

CHECK / LIMIT

- Parliament may tailor FRs for forces and specified services
- may indemnify martial-law acts and has exclusive competence over listed matters.

FEDERAL / RIGHTS IMPACT

- MARTIAL LAW != NATIONAL EMERGENCY local exceptional coercive control differs from constitutional proclamation.
- No rule says all Fundamental Rights automatically disappear in Emergency.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Martial law does not automatically erase habeas corpus or create unlimited military power.

09

STAGE 09 — EXACT 10/15-MARK ARCHITECTURE: LIBERTY, LIMITATION AND REMEDY

EXACT 10/15-MARK ARCHITECTURE · LIBERTY, LIMITATION AND REMEDY · 10 MARKS · 150 WORDS · 1. IDENTIFY CLAIMANT, STATE ACTION AND EXACT ARTICLE. · 2. STATE CITIZEN/PERSON REACH, VERTICAL/HORIZONTAL EFFECT AND DUTY. · 3. APPLY PROTECTED INTEREST · LISTED LIMIT · 4. Add one controlling case and Article 32 or 226 remedy.

10 MARKS / 150 WORDS → 1. Identify claimant, State action and exact Article. → 2. State citizen/person reach, vertical/horizontal effect and duty. → 3. Apply protected interest → listed limit → proportionality. → 4. Add one controlling case and Article 32 or 226 remedy.

CONSTITUTIONAL BASIS / ARTICLE

- 10 MARKS / 150 WORDS
- 1. Identify claimant, State action and exact Article.
- 2. State citizen/person reach, vertical/horizontal effect and duty.
- 3. Apply protected interest → listed limit → proportionality.

POWER / PROCEDURE

- 4. Add one controlling case and Article 32 or 226 remedy.
- 5. Conclude on validity with a narrow qualification.
- 15 MARKS / 250 WORDS
- 1. Frame Part III through gatekeepers, rights, limits, remedies and savings.

CHECK / LIMIT

- 2. Explain the Article family with clause-level accuracy.
- 3. Apply Article 14 fairness and Article 19/21 proportionality where relevant.
- 4. Integrate rights-DPSP harmony through Minerva Mills (1980).
- 5. Test amendment/immunity through Kesavananda Bharati (1973) and I.R. Coelho (2007).

FEDERAL / RIGHTS IMPACT

- 6. Distinguish Article 358 from 359 if Emergency is involved.
- 7. Conclude: governance requires legality, justification and remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

E

EXTRA — SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT · ARTICLE 17 DIRECTLY INVALIDATES CASTE DISABILITY. · ARTICLE 23 DIRECTLY PROHIBITS FORCED LABOUR. · VISHAKA (1997) USED ARTICLES 14, 19(1)(G) AND 21 TO FILL · PRIVACY DISPUTES BETWEEN INDIVIDUALS OFTEN OPERATE THROUGH EVIDENCE, FAMILY · NARROWED ARTICLE 358 TO EXTERNAL EMERGENCY · PROTECTED ARTICLES 20 AND 21 FROM ARTICLE 359 · REQUIRED TIGHTER RELATION/RECITAL CONTROLS; AND

OPTIONAL DOCTRINE / CASE

- Article 17 directly invalidates caste disability.
- Article 23 directly prohibits forced labour.
- Vishaka (1997) used Articles 14, 19(1)(g) and 21 to fill a statutory vacuum around workplace sexual harassment.
- Privacy disputes between individuals often operate through evidence, family, labour or data statutes rather than a simple Article 32 petition.

ADVANCED LIMIT

- narrowed Article 358 to external Emergency;
- protected Articles 20 and 21 from Article 359;
- required tighter relation/recital controls; and
- retained judicial review of the Emergency architecture.

COMPARATIVE NUANCE

- Optional: The Core above is independently paper-complete.
- This section is for deeper 15/20-mark reasoning and unfamiliar hypotheticals.
- Equality as anti-subordination, not merely consistency [ANALYSIS] Formal equality asks whether similarly situated persons receive the same rule.
- Anti-subordination asks whether law entrenches a hierarchy such as caste, sex or disability.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels